Utah AI Framework: Data and Student Privacy Passages

Excerpted verbatim from *Artificial Intelligence Framework for Utah P-12 Education: Guidance on the Use of AI in Our Schools (Utah State Board of Education, March 2026)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Legal citations (U.S.C., C.F.R.) listed under the statutes are omitted.

Purpose (excerpt)

Source: page 3

Achieving a balance between delivering leading-edge education and safeguarding student information requires collaboration among experts in education and cybersecurity. Providing unrestricted access falls short of providing needed protection.

Instead, a balanced and informed approach is preferred, encompassing both maximizing learning and attending to security measures.

Scope (excerpt)

Source: page 4

This guidance complements existing policies on technology use, data protection, academic integrity, and student support.

Existing Policies (excerpt)

Source: pages 4–5

The following existing policies inform this AI Framework:

Federal Code and Regulations

- Children’s Online Privacy Protection Rule (COPPA)
- Family Educational Rights and Privacy Act (FERPA)
- Privacy Act of 1974
- Protection of Pupil Rights Amendment (PPRA)

Utah State Code

- Utah State Code §53E-9-3 regarding Student Data Protection
- Utah State Code §53E-9-2 regarding Student Data Privacy aka “Utah FERPA”
- Utah State Code §63G-2 Governmental Records and Management Act (GRAMA)
- Government Data Privacy Act

Utah Administrative Code

- Utah Admin Code R277-487 regarding Student Data Protection

USBE Policy

- Student Data Privacy

Industry Standards

- Cybersecurity Frameworks:

Guiding Principles for AI Use (excerpt)

Source: page 6

The following principles guide the appropriate and safe use of AI and address current and future educational goals, teacher and student agency, academic integrity, and security.

2. We reaffirm adherence to existing policies and regulations. AI is one of many technologies used in our schools, and its use will align with existing regulations to protect student privacy, ensure accessibility to those with disabilities, and protect against harmful content. We will not share personally identifiable information with consumer-based AI systems. We will thoroughly evaluate existing and future technologies and address any gaps in compliance that might arise.

Guiding Principles for AI Use, Principle 8 (excerpt)

Source: page 7

When students leave a school device, network, or account they may have access to AI tools.

Responsible Use of AI Tools (excerpt)

Source: page 8

Teachers will clarify if, when, and how AI tools will be used, with input from students and families, while the school system will ensure compliance with applicable laws and regulations regarding data security and privacy.

Responsible Use of AI Tools: Safety Alerts (excerpt)

Source: page 10

- **Safety Alerts:** AI could have the ability to monitor written student communications on LEA provided accounts. For instance, when students convey distress in their messages, the technology can analyze these communications and alert designated school personnel to provide timely support.

Responsible Use of AI Tools: Supporting Community and Family, Data Collection

Source: page 10

- **Data Collection:** Parents, guardians, and students should be informed of specific data collection initiatives, and where applicable, consent will be sought. All AI-driven data collection will adhere to local data protection regulations and best practices.

Prohibited Use of AI Tools: Privacy

Source: pages 11–12

- **Privacy concerns:** The use of AI is required to adhere to state and Federal privacy laws.
- **Compromising Privacy:** The education system will not use AI in ways that compromise teacher or student privacy or lead to unauthorized data collection, as this violates privacy laws and our system's ethical principles. See the Security, Privacy, and Safety section below for more information.
- **Noncompliance with Existing Policies:** We will evaluate AI tools for compliance with all relevant policies and regulations, such as privacy laws and ethical principles. AI tools will be required to detail if/how personal information is used to ensure that personal data remains confidential and isn't misused.

Special Consideration: Security, Privacy, and Safety

Source: page 13

We will implement reasonable security measures to secure AI technologies against unauthorized access and misuse. All AI systems deployed within the school will be evaluated for compliance with relevant laws and regulations, including those related to data protection, privacy, and students' online safety. For example, providers will make it clear when a user is interacting with an AI versus a human. Staff and students are prohibited from entering confidential or personally identifiable information into unauthorized AI tools, such as those without approved data privacy agreements. This extends to contracted vendors and other third parties. Sharing confidential or personal data with an AI system could violate privacy if not properly disclosed and consented to.

Glossary (excerpt)

Source: pages 15–16

- **Data Disposition:** The process of disposing of data when it is no longer needed, ensuring it is securely destroyed or transferred according to policy.
- **Data Privacy Agreement (DPA):** An agreement between a local education agency (LEA) and a vendor which establishes data privacy and security protections for student data. Data privacy agreements are +-the primary method used for meeting Utah's law requiring documentation of certain data protections in a contract.
- **Responsible Use of AI:** The ethical and compliant use of AI tools to ensure data transparency, security, privacy, and more.
- **Walled Garden:** A closed ecosystem where the provider has total control over applications, content, and media, restricting access to data.